# Know Your Rights When Police Stop You

A pocket guide for Texas and Maryland from GFA LAW, PLLC. Keep it in your glovebox and share it with family.

## 1 Stay calm, stay safe

- Keep your hands where officers can see them. Do not run, argue or physically resist, even if you believe the stop is wrong. You fight it later, in court.
- Ask clearly:

  **"Officer, am I being detained, or am I free to go?"**

  If you are free to go, leave calmly.

## 2 Use your right to remain silent

- You do not have to answer questions about where you are going, what you did, or whether you have anything illegal.
- Say it out loud, then stop talking:

  **"I am going to remain silent. I want a lawyer."**
- Do not lie to police. Silence is legal; false statements are not.

## 3 Identification

- **Drivers** must show a driver's license when an officer asks (both states). Texas drivers must also show proof of insurance.
- **Texas drivers:** if you are stopped and cannot show a license, you must give your name, license number, address and date of birth when asked (Tex. Penal Code § 38.02(b-1)).
- **Texas, on foot:** you only have to give your name, address and date of birth if you are lawfully *arrested*, but giving a false name or date of birth while detained is a crime (§ 38.02).
- **Maryland, on foot:** there is no general "stop and identify" law, but never give false information.

## 4 Searches

- Officers may ask to search your car, phone, bag or home. You can say no:

  **"I do not consent to any searches."**
- Do not block or physically stop a search. If officers search anyway, your lawyer can challenge it later.
- Do not unlock your phone or give passcodes.

## 5 Recording the police

- You may record officers doing their jobs in public places in Texas and Maryland.
- Keep a reasonable distance, do not interfere, and follow lawful orders. Keep your phone visible and say you are recording.
- Back up the video right away, before you hand your phone to anyone.

## 6 If you are carrying a handgun

- Tell the officer calmly before you reach for anything, and keep your hands visible.
- **Texas:** most adults 21 and older may carry without a license. If you hold a License to Carry and an officer asks for ID, show your LTC with your ID (Tex. Gov't Code § 411.205).
- **Maryland:** carrying a handgun requires a Wear and Carry permit, and you must have it with you whenever you carry.

## 7 Afterward: protect your case

- Write down officer names, badge and car numbers, the time and place, and any witnesses.
- Save every video, photo, text and receipt. Ask witnesses to save theirs.
- Get medical care for any injury and keep the records.
- Do not post about it online or talk about it with anyone but your lawyer.
- Keep every ticket, bond paper, property receipt and court notice.
- **Deadlines are short.** Injury and property claims against Texas cities and counties can require written notice within 6 months, and some Texas city charters set shorter deadlines. Maryland local governments require written notice within 1 year.

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**Requesting a case review is free. If we can help, the consultation is $350.**

This guide is general information about Texas, Maryland and federal law. It is not legal advice for your situation, and every encounter is different. Laws change; confirm with a lawyer. Reading or sharing this guide does not create an attorney-client relationship. Past results do not guarantee future outcomes. GFA LAW, PLLC (Grisham Franceschina Attorneys-at-Law, PLLC), 4970 E. Business 190, Temple, TX 76501. Lawyers responsible for this content: Ryan Franceschina and CJ Grisham. The attorneys of GFA LAW, PLLC are not certified by the Texas Board of Legal Specialization. Ryan Franceschina is licensed in Texas and Maryland; CJ Grisham is